

FEDERAL MARITIME COMMISSION

Docket No. 23-13

USL AUTO EXPORTING INC.,

COMPLAINANT,

v.

EASY SHIPPING CORPORATION,

RESPONDENT.

COMPLAINANT’S NOTICE OF RESPONDENT’S MISREPRESENTATION

Comes now the Complainant, USL Auto Exporting Inc., by and through its undersigned Vice President, and submits this Notice of Respondent’s Misrepresentation in Docket No. 23-13 to correct the record regarding false statements made by Respondent in its Response to Rule to Show Cause at 1.

1. The record unequivocally reflects that Complainant formally withdrew the amendment, as evidenced in Document 23, filed on March 19, 2024, further demonstrating its commitment to procedural fairness and respect for the Commission’s process.¹
2. Respondent falsely alleged that Complainant changed the amount of damages in the Renewed Motion for Summary Judgment. *See* Resp’t’s Resp. to Rule to Show Cause at 1, Docket No. 23-13 (FMC [year]).
3. Complainant did not change the amount of damages in the initial complaint when filing the Renewed Motion for Summary Judgment. Any such modification would have required:
 - A Motion for Leave from the Commission, and
 - Approval from Respondent, neither of which Complainant sought or obtained.
4. Respondent’s statement is entirely false and constitutes an unfounded and misleading misrepresentation of Complainant’s position in this proceeding.

¹ . *See* Doc. 23, Docket No. 23-13 (FMC Mar. 19, 2024).

5. This misrepresentation by Respondent is upsetting to Complainant, as it disregards the procedural record and mischaracterizes Complainant's actions in this proceeding. Complainant has strictly followed the Commission's procedural requirements and views this false allegation as an unjustified attempt to distort the record.
6. Complainant is deeply concerned and upset by this misrepresentation, which not only distorts the facts but also disregards the integrity of these proceedings. Complainant has consistently adhered to the Commission's procedural requirements and views Respondent's allegation as a deliberate attempt to mislead the Commission and cast unwarranted doubt on Complainant's compliance with procedural rules.
7. Complainant submits this Notice to ensure that the Commission is fully aware of Respondent's baseless allegation and to preserve the procedural integrity of this proceeding.

Respectfully submitted,

Dated: January 31, 2025

Respectfully submitted,

USL AUTO EXPORTING INC.,
By: /s/ ANIS HOUSSEIN
ANIS HOUSSEIN
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New Jersey 08854
Tel.: (862) 338-0889
Vice President for COMPLAINANT
USL AUTO EXPORTING INC.

CERTIFICATE OF SERVICE

I hereby certify that on January 31, 2025, a true and correct copy of this COMPLAINANT'S NOTICE OF RESPONDENT'S MISREPRESENTATION was served via electronic mail and/or certified mail to the following:

- **Counsel for Respondent, Easy Shipping Corporation**
Fadi Y. Rafati
Rafati, Ward & Associates, P.C.
Email: frafati@rafatilegal.com

Anis Houssein

Vice President for COMPLAINANT
USL AUTO EXPORTING INC.,